

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 27, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn. Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Dr. Aldrich and Mr. Roybal, item #19 was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 12, 2022. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Van Buren Avenue, north of Dell Range Boulevard. Reporting for the Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4478)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to NR-3 Neighborhood Residential - High Density for land located west of Van Buren Avenue, north of Dell Range Boulevard. Mr. Cook moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4479)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to NR-3 Neighborhood Residential - High Density for land located east of Warren Avenue, south of 4th Street. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Aldrich moved to amend by changing the zoning classification from NR-3 to NR-2, seconded by Mr. Laybourn. Motion failed. Voting “yes” – Dr. Aldrich, Mr. Laybourn and Mr. White. Voting “no” – Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal, and Mr. Segrave. Main motion carried. Voting “yes” – Mayor Collins, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal, Mr. Segrave and Mr. White. Voting “no” – Dr. Aldrich, Mr. Laybourn, and Dr. Rinne. Public comment was made by Brandon Swain, Del Scholfield, and Richard Currit. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn, Dr. Rinne, and Mr.

Segrave. (#4480)

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located south of Atlantic Drive, east of Taft Avenue. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County HI Heavy Industrial and County A-2 Agricultural to MR Medium Density Residential for land located south of Atlantic Drive, east of Taft Avenue. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located south of 6th Street, east of College Drive. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County P Public to P Public for land located south of 6th Street, east of College Drive. Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending various sections of Chapter 15.08, 15.09, 15.10, 15.12, 15.16, 15.22, 15.24 and 15.26 of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, updating specified building code requirements and fees adopted by the city. Reporting for the Committee of the Whole, Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Segrave voting “no”. Public comment was made by Mike White. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, and Mr. Segrave.

ORDINANCE –2nd READING – Amending Section 2.84.050, International Fire Code Board of Appeals, of Chapter 2.84, Miscellaneous Boards and Commissions, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, pertaining to the International Fire Code Board of Appeals. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending various sections within Chapter 8.12, International Fire Code Adopted, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, updating the edition of the International Fire Code adopted by the City and further amending as specified. Mr. Roybal moved to approve on second reading, seconded by Mr. White. Mr. Roybal moved to amend by substitute dated December 14, 2022, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of

Mr. Johnson voting “no”. Main motion, as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Segrave voting “no”.

ORDINANCE –1st READING –Creating Chapter 2.54, Boards and Commissions; Requirements Generally, of the Municipal Code of the City of Cheyenne, Wyoming, setting the minimum standards by which boards and commissions conduct public business – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Laybourn and Mr. Segrave)

ORDINANCE –1st READING – Amending Ordinance No. 4455 defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2022-2023 by updating the department’s pay plan schedule as specified in Exhibit B relevant to cost-of-living adjustments for city employees – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the execution of a Promissory Note to the State of Wyoming in the amount of \$4,862,745.00 to Fund Fire Pension A (General Fund). Motion (per Consent Agenda) carried. (#6292)

RESOLUTION – Designating local banks as depositories for municipal funds. Mayor Collins declared a conflict and relinquished duties of the Chair to President Roybal. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who declared a conflict. Following the vote on this item, Mr. Roybal relinquished duties of the Chair to Mayor Collins. (#6293)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W. S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6294)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Equipoise Addition, 2nd Filing, a replat of all of Block 1 (Lots 1 & 2, inclusive) Equipoise Addition, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Country Club Avenue and Snyder Avenue). Motion (per Consent Agenda) carried. (#6295)

[CA] RESOLUTION – Authorizing a cost-of-living salary increase to eligible full-time employees of the City of Cheyenne (all city funds) – referred to Finance Committee. (Sponsors – Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. Segrave)

[CA] RESOLUTION – Declining the Community Development Block Grant (CDBG) entitlement grant between the City of Cheyenne and the U.S. Department of Housing and Urban Development (HUD) – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of tracts of land situated in portions of Sunny Side Addition and Sunnyside Addition Second Filing, Section 12, T. 13 N., E. 67 W., 6th P.M., Laramie County, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Cook)

Preliminary Plat for the Maltese Cross, a subdivision of a portion of the W ½ of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of E. College Drive, West of Sweetgrass Drive). Mr. Cook moved to acknowledge the Planning Commission's recommendation to approve with staff conditions #1 & 2, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Fire & Rescue Department and TimeClockPlus for scheduling software (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$31,868.00). (#7659)

Memorandum of Understanding regarding a request for Impact Assistance Funds from the State of Wyoming, Industrial Siting Council: South Cheyenne Solar Project, Laramie County, and the City of Cheyenne, Wyoming. Mr. Cook advised this item was reviewed under other items for the agenda at the December 20, 2022, Public Services Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Cook moved to approve in an amount of \$86,681.20, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body with the exception of Dr. Rinne and Mr. Segrave voting "no". (#7660)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and the City of Laramie Police Department, for law enforcement extra-territorial assistance – referred to Finance Committee.

[CA] Real Estate Purchase Agreement between the City of Cheyenne and James O. Woods, IV and Leah K. Woods, Trustees of the James O. Woods, IV, Living Trust dated July 19, 2017 and Leah K. Woods and James O. Woods, IV, Trustees of the Leah K. Woods Living Trust, dated July 19, 2017 for the purchase of real property generally located on the east side of Parsons Place and north of US 30, consisting of approximately 59,330 square feet (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the Cheyenne Police Department, Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center, Laramie County Sheriff's Department, Laramie County and Dr. Clair White of the University of Wyoming regarding the establishment and implementation of a Community-Based Law Enforcement and Behavioral Health Co-Response to behavioral health emergency calls within Laramie County (Wyoming Department of Health Grant) – referred to Finance Committee.

[CA] Donation Agreement between the City of Cheyenne and Union Pacific Railroad Company to accept a donation of selected heritage fleet railroad cars – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Rail Hub, LLC, to provide for the temporary storage of railcars owned by the City of Cheyenne. (2017 Specific Purpose Option Tax Fund and EDA Grant No. 05-79-06167) – referred to Finance Committee.

[CA] Consideration of Bid #S-7-23 for an Agreement between the City of Cheyenne and High Plains Energy Inc. d/b/a Pinnacle Electric & Construction Corp., for the Cheyenne Junior League Ballfields Lighting Installation Project (Community Facility Fees Fund & American Rescue Plan Federal Recovery Funds (ARPA). Motion (per Consent Agenda) carried (accepted bid in an

amount not to exceed \$1,764,915.00). (#7661)

[CA] Consideration to Purchase between the City of Cheyenne and Power Equipment Company for the replacement of the tracks and rollers on the undercarriage of a D6 Liebherr Dozer utilized at the City of Cheyenne Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$48,651.08). (#7662)

[CA] Consideration to Purchase between the City of Cheyenne and Meridian Rapid Defense Group LLC, for the purchase of an Anti-Vehicle Barrier and Trailer System for the Community Recreation and Events Department (2015-2018 Optional 1% Sales Tax Fund and American Rescue Plan Federal Recovery Funds (ARPA)). Motion (per Consent Agenda) carried (in an amount not to exceed \$90,115.98). (#7663)

[CA] Consideration of Bid #E -10-23 for two (2) new four-door 2023 mid-size model SUVs, and one (1) new 2023 1-ton crew cab full size pickup truck (SWAT truck) for the Cheyenne Police Department (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Transfer of ownership of retail liquor license application filed with the City Clerk's Office for Railspur, LLC d/b/a Railspur, 707 W. Lincolnway, Cheyenne, WY (license currently held by Get Bent, LLC). Motion (per Consent Agenda) carried.

Reappointments of Cathie Tabor-Douglas to the Historic Preservation Board; Patti Reisland, Lauren Johnson, Ann Clement, Marsha Dial, Julie Tucker, Michelle Woerner, and Carol Behrend to the Mayor's Council; for People with Disabilities; William Beaman to the City/County Frontier Park Improvements Joint Powers Board; Jeffie Wiggins-McMullen to the Fire Civic Service Commission; Carla Winkler to the Police civil Service Commission; Amy Hernandez and Robert Mathia to the Planning Commission; Nicholas Pickering, Ray Fertig, Jr. and Julie Goode to the Building Code Board of Appeals; and Trent Carroll to the Board of Adjustment. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointments of Dr. Maxwell Silver to the Cheyenne/Laramie County Board of Health; Markese Green to the Board of Adjustment; Patrick Bustos to the Historic Preservation Board; Melissa Amick to the Cheyenne Regional Airport Board; Lisa Nowotny to the Mayor's Council for People with Disabilities; and Chandler Carroll to the Contractor Licensing Board. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made that the Sine' Die meeting will be held on Tuesday, January 3, 2023, at noon (12:00 p.m.) in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting.

Announcement was made that the First Regular meeting of the Governing Body will be held on Tuesday, January 3, 2023, at 12:15 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting.

Announcement was made that due to the New Year's holiday schedule, regularly scheduled City Council Committee meetings will be held as follows: Finance Committee will meet Wednesday, January 4, 2023 at Noon and Public Services Committee will meet Wednesday, January 4, 2023 at 2:00 p.m. Both meetings will be held at 2101 O'Neil Avenue, Room 104 and via electronic conference meeting. The Committee of the Whole will also meet Wednesday, January 4, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, and via electronic conference meeting.

Announcement was made that a Public Hearing will to be held on January 9, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 10.7 acres of land located at 5908 Ridge Road, Laramie County, Wyoming (located southwest of the intersection of Ridge Road and Holland Court).

Announcement was made that a Public Hearing will be held on January 9, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute § 15-1-402 exist for about 7.68 acres of land located in the N1/2N1/2, Section 12, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming (located east of Southwest Drive, north of I-80).

Announcement was made that a Public Hearing will be held on January 9, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of location of retail liquor license application filed with the City Clerk's office for Poor Richard's, from 1808 O'Neil Ave. to 1507 Stillwater Ave., Unit D, Cheyenne, Wyoming

Public comment was made by Chad Willett, Railspur, LLC.

The following members of the governing body made comments under other business: Mr. Johnson, Mr. Laybourn, and Mr. Segrave.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:20 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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